

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

X

INDEX NO.

OSAIN ELLIOTT

Plaintiff,

SUMMONS

Date Index No. Purchased

-Against-

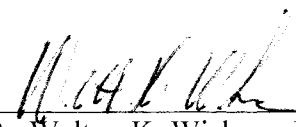
CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER HENRY ANGELES
SHIELD NO. 12693, IN HIS INDIVIDUAL, AND OFFICIAL
CAPACITY, POLICE OFFICERS JOHN DOES 1-4,
IN THEIR INDIVIDUAL AND OFFICIAL CAPACITY.

Defendants.

X

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: September 11, 2017
New York, New York


By Welton K. Wisham, Esq.
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New York City Police Department and Police Officer Henry Angeles

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****X**

OSAIN ELLIOTT

Plaintiff,

**ECF
COMPLAINT****-Against-****Plaintiff Designates Bronx
County as the Place of Trial.**

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER HENRY ANGELES
SHIELD NO. 12693, IN HIS INDIVIDUAL, AND OFFICIAL
CAPACITY, POLICE OFFICERS JOHN DOES 1-4,
IN THEIR INDIVIDUAL AND OFFICIAL CAPACITY.

Defendants.

X

Plaintiff by his attorney, The Law office of Welton K. Wisham, alleges upon information, and belief, the following against Defendants, The City of New York, The New York City Police Department, Police Officers Henry Angeles, and John Does 1-4, as police officers of the City of New York, the following under penalty of perjury:

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in the false arrest, false imprisonment, and malicious prosecution, assault, battery, humiliation, degradation, and the excessive use of force against Plaintiff Osain Elliott on or about March 23, 2016, at approximately 3:30 p.m. in front of 1045 Westchester Avenue, Bronx, New York.
2. That on March 23, 2016, Mr. Elliott was a passenger in a vehicle operated by Josias Rivera acquaintance of the Plaintiff.
3. Plaintiff was informed by Mr. Rosario that the vehicle in which the Plaintiff and four other passengers were riding had been rented by Rosario from a company referred to as Z Car.

4. There were four males, and one female occupant of the motor vehicle, a grey 2015 Mercedes-Benz bearing New York License Plate number GSP8063 inside the rented vehicle.
5. Plaintiff Elliot and the other four occupants, Edwin Rosario, Josias Rivera, Justin Palmer and Angelica Morales were students who attended the Edward A. Reynolds West Side High School located on 140 West 102nd Street, New York, New York.
6. Plaintiff Elliott accepted a ride from Edwin Rosario to the Staten Island Ferry.
7. Elliott entered Rosarios' rented vehicle which was parked by Rosario in front of the West Side High School.
8. Plaintiff got into the vehicle based on his belief that Mr. Rosario had lawfully obtained the right to operate the vehicle and was "being generous" when offered a ride close to Plaintiff's home.
9. After driving for several minutes, the vehicle stopped in front of a commercial store on Westchester Ave, Bronx, New York.
10. Upon exiting the vehicle Plaintiff was pushed back inside the vehicle by a New York City Police Officer who had his guns drawn and pointed directly at Mr. Elliott's face.
11. Plaintiff was forcibly removed from the car and handcuffed along with the other occupants in the vehicle.
12. Approximately five police officers were involved in the stop and seizure of the occupants.
13. Four of the officers had their weapons drawn and pointed directly at the occupants.
14. Officer Angeles commanded Plaintiff to "Don't move, put your hands on the seat."!
15. Mr. Elliott was arrested and taken to the police precinct where he was booked and charged with the "Unauthorized use of a vehicle in the third degree per P.L. Section 165.05.

16. According to P.L. Section 165.05(1) “A person is guilty of unauthorized use of a vehicle in the third degree when”

1. Knowing that he does not have the consent of the owner, he takes, operates, exercises control over, rides in or otherwise uses a vehicle. A person who engages in any such conduct without the consent of the owner is presumed to know that he does not have such consent”

17. All charges against Plaintiff were favorably dismissed on April 11, 2017.

18. That the stop, search and seizure exhibited by the police Defendant officers upon Osain Elliott was extreme, unreasonable, and unnecessary.

19. That Plaintiff was booked, and photograph, and held without his consent at a police precinct for approximately 8 hours.

20. That the Defendants knew, or should have reasonably known that Mr. Elliott was not engaged in the act accused of and that Elliott had not been engaged in any form of criminal activity at the time of his arrest.

21. That Defendants had no reason to threaten Plaintiff by pulling out their police issued revolvers and pointing their guns directly in the face of Plaintiff Elliott.

~~22.~~ That the Defendants arrested Osain Elliott without probable cause to have believed that Elliott knowingly engaged in criminal activity.

23. That all charges against Plaintiff Elliott were favorably dismissed on April 11, 2017.

24. That Plaintiff sustained significant and unwarranted emotional trauma due to the actions by the Defendant police officers.

25. Osain Elliott was subjected to physical and emotional pain, and suffering, stemming from the excessive and unreasonable forced inflicted upon him by Defendant police officer Henry Angeles without legal cause or justification.

26. That without probable cause or legal justification officers Angeles and Defendant Officers John Does- 1-4, conducted an unreasonable searched of Elliott without legal justification.

JURISDICTION AND VENUE

27. This Court has personal jurisdiction over the defendants because the defendants committed a tortuous act inside the State of New York causing injury within the State of New York. This Court also has concurrent jurisdiction over Plaintiff's civil rights causes of action based on 42. U. S. Code Section 1983.

PARTIES

28. Plaintiff Osain Elliott is a twenty (20) year old African American resident of the State of New York.

29. That at all times relevant herein, Defendant Police Officers Henry Angeles, and John Does 1-4, were duly appointed, and acting as employees of the New York City Police Department.

30. That the defendant police officers named herein, are current members of the New York City Police Department believed to be assigned to the Auto Crimes Division of the New York City Police Department, located at 109-15, 14th Ave, Queens, New York 11356.

31. That the individual police officers involved in the incident underlying this lawsuit were at all times mentioned in this complaint, agents, servants, and employees, acting within the scope of their employment by Defendant City of New York, and were duly appointed police officers in the New York City Police Department acting within their individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter,

ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

32. That the Defendant, City of New York, is a municipal corporation within the State of New York.

33. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

34. That at all times relevant hereto, the City of New York employed the defendant Police Officers involved in this incident.

**AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF, OSAIN ELLIOTT FOR FALSE ARREST UNDER 42. U. S.C.
SECTION 1983**

35. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "34", with the same force and effect as though more fully set forth at length herein.

36. That at all time herein mentioned and upon information, and belief, the Defendant Police Officers Henry Angeles, and John Does 1-4 were, and still are, members of the New York City police officer assigned to Auto Crimes Division located at above mentioned address in Queens New York.

37. That at all time herein mentioned the defendant, City of New York, maintained, operated, and controlled the Police Department within the City of New York.

38. That at all time hereinafter mentioned the defendant, City of New York, employed police officers in its police force.

39. That at all times hereinafter mentioned the police officers employed by the Defendant City of New York, were servants, agents, and/or employees of the Defendant City of New York, and were acting within the scope of their employment.

40. That on or about March 23, 2016, at approximately 3:30 p.m., Plaintiff, Osain Elliott was lawfully riding as a passenger in a vehicle rented by Justin Palmer.

41. Plaintiff Elliott was unlawfully held against his will by defendant police officers Henry Angeles and John Does 1-4, while Plaintiff was attempting to exit the vehicle on 1045 Westchester Ave.

42. Defendants police officers, Henry Angeles along with other unidentified police officers pulled out their police issued revolvers and pointed their loaded weapons directly in the face of the Plaintiff causing Mr. Elliott to fear for his life.

43 That the defendants, their agents, servants, and/or employees, intentionally, and without legal justification, unlawfully, and unreasonably, arrested, searched, imprisoned, detained, restrained, and, incarcerated the plaintiff, Osain Elliott.

44. That at all time herein mentioned, and based upon information and belief, plaintiff Osain Elliott was detained, and incarcerated by the individuals named defendants and the New York City Police Department for approximately eight (8) four hours without probable cause, legal justification, or consent of the Plaintiff.

45. That at all times herein mentioned, the plaintiff, Elliott was falsely arrested, imprisoned, detained, restrained, incarcerated, and badgered by defendant police officers Henry Angeles and John Does 1-4, who were members of the New York City Police Department of the City of New York, who were agents, servants and/or employees of the defendant, City of New York, and who

were acting under and within the scope of their employment at the time of the incident complained of herein.

46. That at all times herein mentioned, the defendants intended to confine the plaintiff without privilege, the plaintiff was conscious of the confinement, and plaintiff did not consent to the confinement.

47. That during plaintiff's unlawful, and wrongful incarceration, Plaintiff was forcibly handcuffed, searched, assaulted, and subjected to humiliation and personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, scorn, and the use of excessive force by the defendants when for no apparent reason, and without legal justification, the Defendants pointed their weapons in the face of the Plaintiff, without legal justification, and without regards to the unwarranted risk of life of Plaintiff Elliott.

48. That as a result of the false imprisonment, arrest, detention, incarceration, and excessive use of force applied by the Defendants, Osain Elliott was caused to suffer severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and deprivation of his civil rights, and freedom, under the Constitution of the United States.

49. That the false arrest, imprisonment, detention, incarceration, and prosecution of the plaintiff by the defendant police officers constituted a malicious act, and was a wanton and reckless degradation of the plaintiff's liberty.

50. That this action is brought under 42. U.S.C. Section 1983 recognizing Plaintiff's right to seek legal redress and compensation for his Constitutional violations by the Defendants.

51. That by reason of the foregoing, the plaintiff, Osain Elliott, has been damaged, a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

PLAINTIFF'S SECOND CAUSE OF ACTION AGAINST DEFENDANTS FOR FALSE IMPRISONMENT UNDER 42 U.S.C SECTION 1983 AND NEW YORK STATE LAW.

52. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 51", with the same force, and effect, as though more fully set forth at length herein.

53. Defendants initiated Plaintiff's arrest, and detention without probable cause to have reasonably believed that Elliott had been involved in criminal activity by the mere presence of Mr. Elliott being a passenger in a rented vehicle.

54. That the defendants, their agents, servants and/or employees, intentionally, and without probable cause, or legal justification, unlawfully, and unreasonably, falsely imprisoned, detained, restrained, assaulted, and falsely accused Plaintiff of riding in a vehicle without the consent of the owner.

55. That at all times herein mentioned, the Plaintiff was falsely imprisoned, detained, restrained, assaulted and threatened by defendants police officers Henry Angeles and police officers John Does 1-4 who were acting under color of law and within the scope of their employment.

56. That as a result of the false imprisonment of Plaintiff Osain Elliott by the Defendants, their agents, servants and/or employees, the plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom.

57. That as a direct, and proximate result of the acts, and omissions of the defendants herein described, the plaintiff was caused to suffer great physical pain and agony, and was caused great emotional pain, anguish and suffering and harm.

58. That in the manner describes herein, the defendants acted carelessly and recklessly with total disregard of the plaintiff's rights.

59. That the defendants knew, or should have known that their actions would or probably would inflict extreme emotional distress upon the plaintiff.

60. That the Plaintiff was intentionally confined without privilege or probable cause and that the defendants could not have reasonably believed that plaintiff had committed a crime.

61. That at all times mentioned herein, Plaintiff was aware of and did not consent to the confinement. Plaintiff was thereby falsely imprisoned.

62. That the false imprisonment, detention, and restriction of plaintiff's freedom, constituted a malicious act, and was a wanton and reckless degradation of the plaintiff's liberty and freedom.

63. That as a result of the false imprisonment, detention, and unreasonable le search and seizure of the Plaintiff by the defendants, their agents, servants and/or employees, the plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and deprivation of ~~his~~ liberty, and freedom secured under the Constitution of the State of New York without probable cause or legal justification.

64. That by reason of the foregoing the Plaintiff, Osain Elliott has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANT POLICE
OFFICERS FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCH, SEIZURE AND UNREASONABLE FORCE, UNDER THE
FOURTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION**

65. That Plaintiff repeats, reiterates and realleges each and every allegations contained in Paragraphs "1 through "64," with the same force and effect as though more fully set forth at length herein.

66. Mr. Elliott was arrested without a warrant, probable cause, or reasonable suspicion, by the Defendants New York City Police Officers.

67. Plaintiff was harassed, threatened, ridiculed and held against his will by the unreasonable use of force inflicted upon Plaintiff by Defendant Henry Angeles and John Does 1-4 officers without reason or legal justification.

68. Plaintiff was not engaged nor had he been engaged in any criminal activity at the time he was stopped, and arrested on March 23, 2016.

69. Plaintiff offered no resistance whatsoever to the arresting officers.

70. The plaintiff committed no crime and the defendant officers knew or should have known that the plaintiff had not been engaged in any criminal activity at the time of his arrest.

71. The Defendant's police officers, conspired together to violate the due process and other civil rights of the plaintiff, and to charged him with crimes which he did not commit, and which the defendant police officers knew or should have recognized that the plaintiff did not commit.

72. That the methods utilized by Officer Angeles and John Does 1-4, in drawing their weapons and pointing their weapons directly into the face of Mr. Elliott without any threat posed by the Plaintiff, was highly intrusive and constitutes an unreasonable search, seizure and use of force which is prohibited under the Fourth Amendment to the Constitution of the United States.

73. That where police officers possess reasonable suspicion to make an investigatory stop, drawing weapons and using handcuffs and other restraints, violates the Fourth Amendment.

74. That upon information and belief, the Defendant officers lacked specific information that Plaintiff Osain Elliott was a proper suspect and that there was no indication that Elliott posed a danger or a threat to the Defendant officers.

75. That it was unreasonable for Officer Angeles and officers John Does 1-4 to have believed that their safety was at risk to the extent that drawing their weapons constituted an intrusive and abusive police tactic unwarranted under the laws of the Constitution of the United States.

76. That Osain Elliott at the time of his arrest was cooperative with the law enforcement offices on the scene and that the use of force by the Defendant offices was unjustified.

77. All suspects held in captivity during the March 23, 2016, incident, were cooperative and that there was no reason to believe that the Plaintiff or others were dangerous or posed a threat to the officers.

78. That the defendant offices lacked information to believe that the occupants within the vehicle were armed or dangerous.

79. That when police have only a reasonable suspicious to make an investigator stop, drawing weapons and using handcuffs and other restraints violates the Fourth Amendment.

80. In the manner described herein, the defendants acted with reckless disregard of the plaintiff's constitutional rights.

81. As a direct and proximate result of the acts and omissions of the defendants herein described, the plaintiff was incarcerated for approximately eight (8) hours.

82. Plaintiff was deprived of his rights, and immunities secured to him under the Constitution and laws of the United States, and the State of New York including but not limited to his rights under the Fourth, and Fourteenth Amendment to the Constitution of the United States.

83. Plaintiff was also deprived of his right to be free, and secured in his persons, and to free from arrest, or search, without probable cause, or pursuant to a warrant, and to be free from unreasonable conditions of confinement including the right to be free from punishment without due process, and to the equal protection of the laws.

84. Defendants have employed a gross abuse of power, unfair procedures, and gross disparate treatment in their treatment of plaintiff due to his race as an African American in violation of the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

85. The defendant police officers subjected the plaintiff to intentional discrimination because of his ancestry, and race, in violation of the plaintiff's rights under 42 U.S.C. Section 1981, including but not limited to his right to full, and equal benefits of all laws, and proceeding for the security of his person, and property.

86. Defendant police officers, acting in their individual, and official capacity, and under color of law, conspired together and with others, and reached a mutual understanding to undertake a course of conduct that violated plaintiff's equal protection of the law, and the privileges, and immunities thereof.

87. As a direct and proximate result of the conspiracy between defendant police officers, plaintiff was unreasonably searched, seized, threatened and imprisoned in violation of plaintiff's rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

88. By reason of the foregoing, the Plaintiff was intentionally confined without privilege or probable cause to believe a crime had been committed.

89. Plaintiff was aware of, and did not consent to the confinement. Plaintiff was thereby falsely arrested, and imprisoned.

90. The force used in arresting the plaintiff was excessive, unnecessary and unreasonable.

91. As a consequence thereof, Osain Elliott has been greatly injured.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF OSAIN ELLIOTT AGAINST DEFENDANTS FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C SECTION 1983.**

92. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "91", with the same force and effect, as though more fully set forth at length herein.

93. That the defendants, City of New York, by their agents, servants and / or agents, including but not limited to defendant Police officers Henry Angeles, and John Doe1-4, were acting within the scope of their employment, and who falsely, and maliciously, without probable cause, charged the plaintiff with crimes, and arrested the plaintiff, and continued the unlawful prosecution against plaintiff knowing that plaintiff had not been engaged in any form of unlawful activity.

94. That nevertheless, defendants sought plaintiff's confinement, and prosecution.

95. That all the charges against the plaintiff were terminated in favor of the plaintiff.

96. That by reason of the foregoing, the plaintiff has been injured and has suffered great emotional, and mental distress, and has been greatly injured, and sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR AN SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR WRONGFUL INCARCERATION.**

97. That plaintiff repeats, realleges each and every allegation contained in Paragraphs Numbered "1" through "96", with the same force and effect as though more fully set forth at length herein.

98. That by reason of the foregoing, the Plaintiff was intentionally confined by defendants, acting under color of law for several hours in a facility maintained, and operated by the New

York City Police Department without probable cause, or legal justification, and without Plaintiff's consent.

99. As a consequence thereof, Osain Elliott was substantially harmed, and injured.

AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF OSAIN ELLIOTT AGAINST DEFENDANTS CITY OF NEW YORK, AND THE NEW YORK CITY POLICE DEPARTMENT UNDER RESPONDEAT SUPERIOR.

100. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "99", with the same force and effect as though more fully set forth at length herein.

101. That the municipal Defendants City of New York, and the New York City Police Department, hired, and supervised ,the individual Defendants Officers Henry Angeles and John Does 1-4.

102. Officers Henry Angeles and John Does 1-4, individually and collectively, committed the wrongs stated herein while acting within the scope of their duties as employees of the City of New York and the New York City Police Department.

103. Officer Angeles is believed to have outranked other individual Defendants who participated in the unlawful acts stated herein against Plaintiff Elliott.

104. Officer Henry Angeles had supervisory authority over those offices that he outranked.

105. As a result, the Municipal Defendants, City of New York and The New York City Police Department are liable for the unlawful acts of their employees, and subordinates, under respondeat superior.

**AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF OSAIN
ELLIOTT AGAINST THE DEFENANTS FOR THE INTENTIONAL INFLICTION OF
EMOTIONAL STRESS.**

106. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “105”, with the same force and effect as though more fully set forth at length herein.

107. That the defendants, engaged in actions intended to inflict emotional trauma on the plaintiff,  Osain Elliott.

108. The actions complained of herein constituted a continuing tort of wrongdoing that did not end until all charges against the Plaintiff were dismissed on April 11, 2017.

109. That the tortious conduct of the Defendants constitutes a part of an ongoing pattern of misconduct thus triggering the “continuing tort doctrine under New York Law. Manliguez v. Joseph, 226 F. Supp. 2d 377, 386 (E.D.N.Y. 2002) (quoting Shannon v. MTA Metro-North R.R., 269 A.D.2d 218 (2000)).

110. That by reason of the foregoing, the plaintiff has been injured and has suffered great emotional and mental distress and has been greatly injured and sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

111. That by reason of the foregoing, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

WHEREFORE, Plaintiff request that the Court grant the following relief jointly and severally the Defendants:

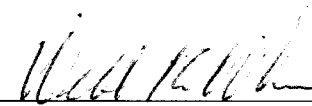
A. Compensatory damages in the amount this Court shall consider to be fair, reasonable and just to be determined at trial for the unlawful incarceration and restraint of liberty as well as the pain, suffering and psychological injuries sustained by Mr. Elliott as a result of the events alleged herein.

B. Punitive damages against the Individual Defendants and Supervisory Defendants in an amount to be determined at trial.

C. An order awarding Plaintiff reasonable attorneys' fees under 42.U.S.C Section 1988, together with the costs of this action.

D. Such other and further relief as the Court may deem just and proper.

Dated: September 11, 2017
New York, New York

By /s/ 

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